

Cover story **PRIME MINISTER**

Lanka. Even though this was an overnight stopover, for a while the country had to do its political math and figure out who the next senior-most member of the CCPA would be.

Still, there was no mystery about one thing: the Congress is not interested in naming a replacement for Manmohan from outside the Family, even for a couple of weeks. The troika of the home minister, the defence minister and the external affairs minister will share the duties and all of them will report to the highest seat of UPA's power: 10 Janpath. An empowered CCPA may have been a clever political move as the Government is unlikely to take any major policy decisions in the next few months. And the CCPA, with leaders like Sharad Pawar and Lalu Prasad Yadav as members, represents the allies. But what really explains the absence of an acting prime minister is the paramount leader's innate sense of insecurity.

SYSTEMIC MALAISE

It is illness as a metaphor. The prime minister's ailment has brought out the infirmities of the Indian politi-

cal system. It is perhaps democracy at its elastic best. It is now for the entire world to see: a huge and complex country like India can be run without a functional head of government. The prime minister of India was under anaesthesia for 12 hours in an operation theatre but there was no one officially authorised to carry out his duties. Another only-in-India miracle. Strangely, even the Indian Constitution permits the absence of a prime minister. It has only a provision that there shall be a prime minister who enjoys the confidence of the Lok Sabha. It is on his recommendations that the President will appoint a Cabinet which shall advise the President. But once a prime minister is appointed, his role ends there. Should an acting prime minister have been sworn in and allowed to function till Manmohan resumed his duties? The new prime minister could have taken over fully as he would not have to face Parliament whose term was coming to an end anyway. An imaginary situation but it proves that India can be run by an authority which is not part of the government but controls all the levers. "Everything is happening according to



Constitutionally **SPEAKING...**

The inclusion of a constitutional provision for a deputy prime minister will put in place a clear chain of command

Even as the UPA Government pushed its top minister to swing too many fences when Prime Minister Manmohan Singh availed his medical leave, the big picture emerging from the legal quarter is not very pretty. What arrangements should be made when the prime minister is unable to carry out his duties? Unlike the US, the Indian Constitution does not have a provision for automatic handing over of the reins of governance when the

prime minister falls ill.

Though India had several deputy prime ministers over the years, the post had remained more of an honorific, a consolation prize in the game of political jugglery. Unlike the prime ministerial slot, there are automatic stand-ins for other posts. The Vice-president can step in for the President followed by the Lok Sabha Speaker and the chief justice of the Supreme Court. There were attempts though to put a hierarchy in place. A

writ petition in 1989 challenging the appointment of Devi Lal as deputy prime minister was rejected by the Supreme Court, but with a terse comment: "In view of attorney general's statement that he is just a minister like other members of the Council of Ministers... we think the contention raised by the petitioner has no force." Unlike the US where the President is elected directly by the people and his Cabinet consists of handpicked members, the Westminster form of government in India is anchored on "Cabinet Government" based on collective responsibility. This allows the Cabinet to carry on even without the prime minister.

Earlier appointments of deputy prime ministers were an opaque mix of compulsions of coalition politics and intra-party power equations.